Indian Acrylics Ltd vs Punjab State Electricity Regulatory ... on 24 April, 2009

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 86 of 2008

Dated: April 21, 2009

Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member
Hon'ble Mr. H.L. Bajaj, Technical Member

M/s. Indian Acrylics Ltd. - Appella
Versus
Punjab State Electricity Regulatory Commission & Ors. -Respondent

Counsel for the Review Petitioner(s) : Mr. Deepak Sabharwal

Counsel for the Respondent(s) : Ms. Jayashree Anand, Mr. K.K.Mahalik, Advocates
Er. J. P. Singh, Dy. CE for Resp. No.2
Mr. Sakesh Kumar, Adv for PSERC
Er. Raghvinder Singh, AD, PSERC

ORDER

It is noticed that although in the opening sentence of the appeal the appellant has stated that the appeal is filed against the orders dated 18.02.08 and 17.09.07, the appellant has only filed a copy of the order dated 18.02.08 which suggests that the impugned order is the order dated 18.02.08 and not the order dated 17.09.07. The appellant has also paid court fee for challenging only one order. The Tribunal will therefore hear appeal over only order dated 18.02.08. The order dated 18.02.08 was based on a review petition. Therefore, the scope of the appeal will be limited to the scope of the review petition.

Heard both the parties.

The appeal is dismissed. Reasons will follow.

(H.L. Bajaj) (Justice Manju Goel
Technical Member Judicial Member

DB/SH